

Sanctioning permissible posts for the increased student strength of Dr. Babasaheb Ambedkar Residential School for Mentally Retarded, Mohadi, Dist. Bhandara, run by Bhondekar Cultural, Sports and Social Education Society, Bhandara.

GOVERNMENT OF MAHARASHTRA

Divyang Kalyan Department

Government Resolution No.: MIS-2016/C.R.60/D.K.1

31, 32, 35 A, Mittal Tower, A-Wing, 3rd Floor,
Barrister Rajani Patel Marg, Nariman Point, Mumbai-400 021.
Date :- 04 January, 2024.

Read :-

1. Social Justice and Special Assistance Department, Government Resolution No. EDD-2003/C.R.340/Part-3/Reform-2, dated 18 August, 2004.
2. Social Justice and Special Assistance Department, Government Resolution No. EDD-2012/C.R.67/D.K.1, dated 08 April, 2015.
3. Social Justice and Special Assistance Department, Government Resolution No. EDD-2018/C.R.138/D.K.1, dated 06 November, 2018.
4. Social Justice and Special Assistance Department, Government Resolution No. MIS-2016/C.R.60/D.K.1, dated 29 August, 2018.
5. Social Justice and Special Assistance Department, Government Resolution No. MIS-2016/C.R.60/D.K.1, dated 30 August, 2022.
6. Minutes of the 7th meeting of the Hon. High-Level Secretary Committee dated 30.10.2023, dated 07.11.2023.

Preamble :-

Approval was granted on a grant-in-aid basis for a capacity of 40 residential students to Dr. Babasaheb Ambedkar Residential School for Mentally Retarded, Mohadi, Dist. Bhandara, run by Bhondekar Cultural, Sports and Social Education Society, Bhandara as per Reference No. 2. Correspondingly, approval was granted for 19 permissible posts as per Government Resolution dated 18.08.2004 under Reference No. 3. Under Reference No. 4, the approved student strength of the said school was revised from 40 residential to 55 residential students.

Under Reference No. 5, post-facto approval of the Finance Department was granted to the Government decision regarding granting approval on a grant-in-aid basis to the said school as a special case. Also, a token supplementary demand was sanctioned by the Hon. Legislature for bringing the said school on a grant-in-aid basis and for the expected expenditure for permissible posts.

The proposal for granting approval to permissible posts for the increased student strength of the said school as per the staffing pattern of Government Resolution dated 18.08.2004 was under consideration of the Government. Accordingly, the Government has taken the following decision.

Government Resolution :-

As per the Finance Department Government Resolution dated 10 September, 2001, prior to submitting proposals regarding creation of new posts, declaring posts lapsed, reviving lapsed posts, etc., in government and semi-government offices, as well as government undertakings, corporations, aided institutions, etc., before the High-Level Secretary Committee, it is necessary to submit the proposal with the recommendation of the Sub-Committee constituted as per Government Resolution dated 09 June, 2017 for the approval of the High-Level Secretary Committee. Accordingly, in the 6th meeting of the said Sub-Committee held on 13 June, 2023 at 03.30 PM, it recommended submitting the proposal for sanctioning permissible posts for the increased student strength of Dr. Babasaheb Ambedkar Residential School for Mentally Retarded, Mohadi, Dist. Bhandara, run by Bhondekar Cultural, Sports and Social Education Society, Bhandara, for the approval of the Hon. High-Level Secretary Committee. In accordance therewith, following the discussion held in the meeting of the Hon. High-Level Secretary Committee on 30.10.2023, as per the minutes issued on 07.11.2023, approval has been granted for the creation of posts as per the table below, permissible as per the staffing pattern of Government Resolution dated 18.08.2004 for the increased student strength of the said special school.

A) Regular Posts :-

Sr. No.	Designation	Number of Posts
School Section		
1	Headmaster (Junior Grade) S-14 : 38600-122800	1
2	Special Teacher S-10 : 29200-92300	1
3	Physical Education Instructor/ Craft/Handicraft Teacher/ Music Teacher S-10 : 29200-92300	1
4	Caretaker S-1: 15000-47600	1
Office Section		
5	Junior Clerk-cum-Accountant S-6 : 19900-63200	1
Total		5

B) Services to be obtained through Outsourcing :-

Sr. No.	Designation	Number of Posts
Hostel Section		
1	Multi-Purpose Group D Employee (Watchman/Caretaker/Helper)	2
Total		2

2. Pursuant to the approval of the Hon. High-Level Secretary Committee, approval is hereby granted through this Government Resolution for creation of a total of 7 posts (5 regular posts and 2 posts to be obtained through outsourcing as per the table in paragraph no. 1) for the said school, subject to the following terms and conditions:-

1. The rules framed by the Government from time to time shall be binding on the said school to implement.
2. For teaching and non-teaching recruitment, it shall be mandatory to fill posts in accordance with the recruitment rules and service recruitment rules mentioned in Social Justice and Special Assistance Department, Government Resolution No. EDD-2018/C.R.288/A.K.-1, dated 18 July, 2018 and Social Justice and Special Assistance Department, Government Corrigendum No. EDD-2018/C.R.288/A.K.-1, dated 05 February, 2019. Otherwise, the said recruitment process shall be treated as illegal. Also, legal action as per rules shall be taken against those concerned. However, if the institution issues appointment orders bypassing the prescribed process and the concerned District Social Welfare Officer, Zilla Parishad / Assistant Commissioner, Mumbai City/Suburbs approves it, the concerned District Social Welfare Officer, Assistant Commissioner, Mumbai City/Suburbs shall be fully responsible.
3. While conducting recruitment for teaching and non-teaching posts, reservation must be determined from the Backward Class Reservation Cell as per the new reservation policy, and recruitment must be carried out only as per the roster after such reservation is fixed.
4. For recruitment in teaching and non-teaching cadres, reservation must be determined from the Backward Class Reservation Cell. Posts with fixed reservation must be filled according to the roster. Recruitment should be conducted after verifying category-wise social reservations, Economically Weaker Sections (EWS) reservation apart from social reservation, and horizontal reservation (women, sports persons, divyang, etc.).
5. While filling teaching posts, strict compliance shall be ensured regarding the provisions prescribed in Social Justice and Special Assistance Department, Government Resolution No. EDD-2018/C.R.288/A.K.-1, dated 18 July, 2018, as well as Social Justice and Special Assistance Department, Government Corrigendum No. EDD-2018/C.R.288/A.K.-1, dated 05 February, 2019, and the educational qualifications/eligibility required for posts mentioned in Social Justice and Special Assistance Department, Government Resolution No. EDD-2003/C.R.340/Part-3/Reform-2, dated 18 August, 2004, and Government Resolutions issued from time to time.
6. While making appointments to the said posts, selection must be made through the selection committee constituted as per the Government Resolution under prevailing law. Recruitment conducted without following the prescribed procedure shall be cancelled, and if legal court cases arise in the future regarding appointments, the entire responsibility thereof shall rest with the concerned institution, District Social Welfare Officer / Assistant Commissioner, Mumbai City/Suburbs.
7. The responsibility of determining the eligibility of candidates considering the provisions of prevailing rules for the selection process of teaching and non-teaching posts shall rest with the concerned institution. Also, if appointment is given bypassing prevailing rules, the concerned District Social Welfare Officer / Assistant Commissioner, Mumbai City/Suburbs / Commissioner, Divyang Kalyan and the concerned Institution / Principal / Management shall be fully responsible.

8. While filling teaching and non-teaching posts, educational qualification, experience, and professional eligibility prescribed by the Government of Maharashtra from time to time shall be strictly followed, and recruitment shall be carried out accordingly. In case of any irregularity in this regard, the District Social Welfare Officer / Assistant Commissioner, Mumbai City/Suburbs / Commissioner, Divyang Kalyan granting administrative approval, and the Management of the institution shall be fully responsible.
 9. A candidate appointed by following prescribed rules and procedures shall be deemed to have joined service from the date on which they officially report for duty under this process.
 10. While filling sanctioned posts, instructions issued by the Government from time to time shall be strictly followed.
3. It shall be binding on the concerned institution to complete the recruitment process for sanctioned posts within three months, and after completing the recruitment process for all permissible sanctioned posts within the prescribed time, a report in this regard shall be submitted to the Government within one month by the Commissioner, Divyang Kalyan, Pune.
4. This Government Resolution is being issued following the directives given in the 7th meeting held on 30.10.2023 of the High-Level Secretary Committee constituted as per Finance Department Government Resolution dated 10 September, 2001 regarding creation of new posts, declaring posts lapsed, reviving lapsed posts in government, semi-government offices as well as government undertakings, corporations, aided institutions, etc., and in accordance with the minutes dated 07.11.2023, and Finance Department Unofficial Reference No. 557/Aapuk, dated 01.12.2023.
5. This Government Resolution is available on the website of the Government of Maharashtra www.maharashtra.gov.in and its computer code number is 202401041516271835. This order is being issued by attesting with digital signature.

By order and in the name of the Governor of Maharashtra,

(V. P. Ghodke)

Deputy Secretary, Government of Maharashtra

Copy to:

1. Hon. Chief Minister, Private Secretary to, Mantralaya, Mumbai 400 032.
2. Senior Private Secretary to Additional Chief Secretary, Finance Department, Mantralaya, Mumbai.
3. Personal Assistant to Secretary (Divyang Kalyan), Mantralaya, Mumbai 400 032.
4. Commissioner, Divyang Kalyan, Maharashtra State, Pune.
5. Regional Deputy Commissioner, Social Welfare Department, Nagpur.
6. Chief Executive Officer, Zilla Parishad-Bhandara.
7. District Social Welfare Officer, Zilla Parishad-Bhandara.
8. Accountant General, Maharashtra-2 (Audit/ Accounts and Entitlement), Nagpur.

9. District Treasury Officer, Bhandara.
10. President / Secretary, Bhondekar Cultural, Sports and Social Education Society, Bhandara run Dr. Babasaheb Ambedkar Residential School for Mentally Retarded, Mohadi, Dist. Bhandara.
11. Select File (Divyang Kalyan - 1).